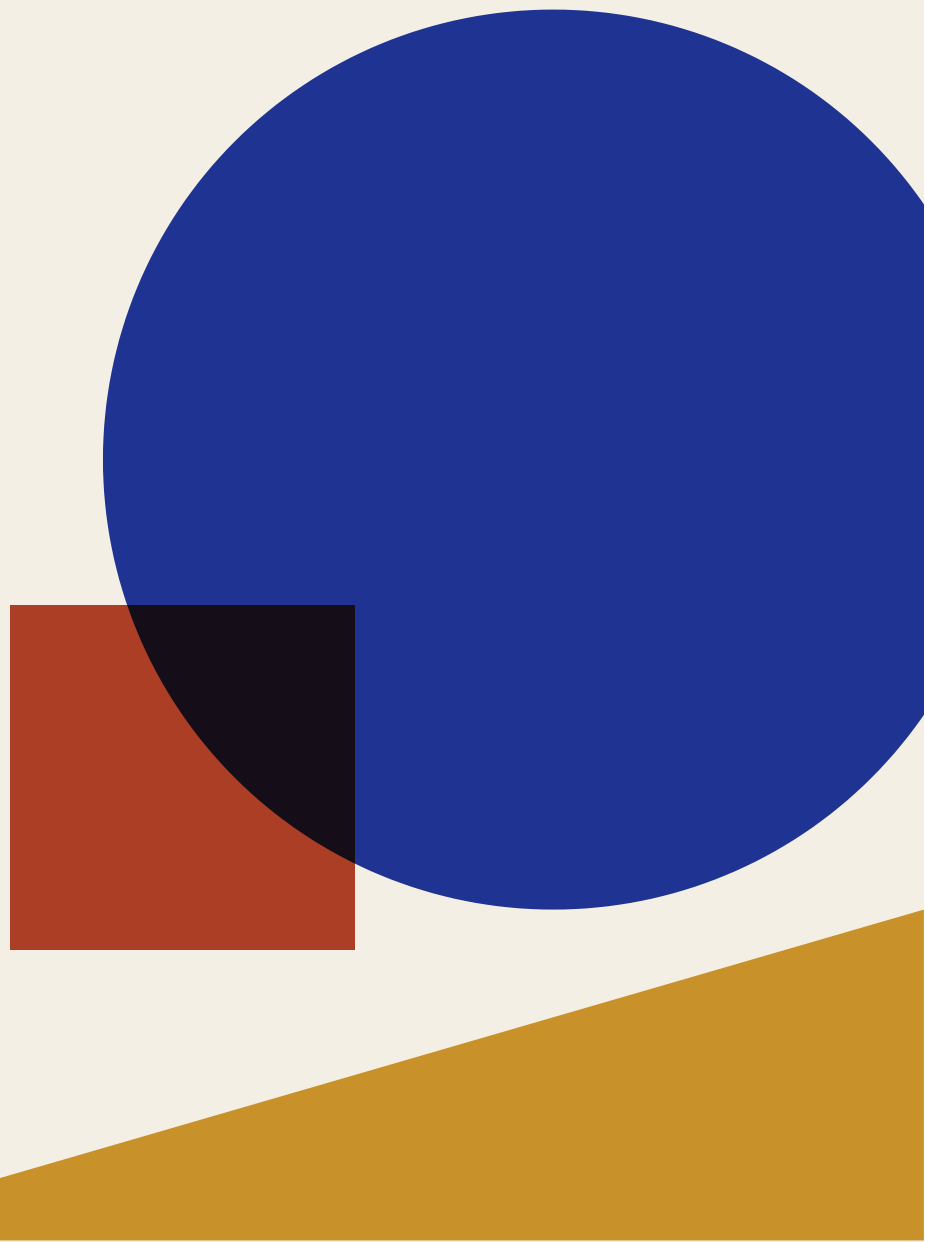




programme details

apaa patent surgery course 2026

3-6 november 2026

the landmark bangkok

HOSTED BY THE APAA RECOGNIZED GROUP OF THAILAND

ABOUT THE COURSE

a working course, not a lecture series

The APAA Patent Surgery Course brings four senior patent practitioners from Hong Kong, Australia and Japan to Bangkok for three and a half days of practical work on patent drafting and prosecution. Participants draft, and the tutors mark what they have written.

Patent law differs from one jurisdiction to the next. The craft of a well-built claim travels much further. What a claim must do to define a boundary, how the description must support it, which ordinary words narrow it without anyone noticing: these questions are answered in much the same way in Tokyo, Melbourne and Hong Kong. Over the four days, participants see how practitioners trained in different systems approach the same specification, the same prior art and the same office action, and take those perspectives back to their own practice.

The course is taught in English and is open to members of every APAA national and recognized group, as well as to non-members.

who it is for

There is no prerequisite: no minimum years in practice and no technical background requirement. The course is for you if:

- you draft specifications and have never had a senior practitioner mark up your claims line by line
- you answer office actions by argument and amendment, and want to see how others approach the difficult ones
- you advise on freedom to operate and would like a worked example of how that advice is structured, with its qualifications and its limits
- you want to know where AI genuinely helps in drafting and prior art analysis, and where it does not

what you will take away

- Claims you have drafted, marked by senior practitioners, with the reasons for each change
- A method for testing a claim: whether it captures competing products, avoids unnecessary limitations, overcomes the prior art, and is properly supported
- Drafting strategies for applications that will be prosecuted abroad, including before the EPO and the USPTO
- Approaches to complex office actions, including amendment and argument, worked through in practical exercises
- A worked example of freedom-to-operate advice, with its necessary qualifications and limitations
- A practical view of AI in drafting, office actions and prior art analysis
- A certificate of completion

COURSE OUTLINE

eight topics over four days

- | | |
|---|---|
| <p>1 Typical parts of the patent application, and how each supports the claims
■ DAY 1</p> <hr/> | <p>2 How to properly construe a patent
■ DAY 1</p> <hr/> |
| <p>3 Patent claim drafting exercise, in groups, reviewed by the tutors
■ DAYS 1 AND 2</p> <hr/> | <p>4 The use of AI in drafting specifications
■ DAY 2</p> <hr/> |
| <p>5 Drafting techniques for global prosecution strategy
■ DAY 3</p> <hr/> | <p>6 Dealing with complex office actions
■ DAY 3</p> <hr/> |
| <p>7 How to advise on freedom to operate
■ DAY 3</p> <hr/> | <p>8 AI in office actions and prior art analysis
■ DAY 4</p> <hr/> |

THE TRADEMARK CARAVAN

Non-Traditional Marks: From Practice to Challenges

Friday 6 November
13:30-15:30

On the afternoon of Friday 6 November, the course hosts the APAA Trademark Caravan, Non-Traditional Marks: From Practice to Challenges, a presentation and panel discussion from 13:30 to 15:30.

Onsite access is complimentary for course registrants, with no separate registration needed.

The full four-day agenda follows on the next three pages.

1

day 1 / tuesday

3 November 2026

09:30-16:00

09:30-10:00 Welcome and inauguration

10:00-10:30 Course introduction

10:30-11:30 TOPIC 1

Typical parts of the patent application

The detailed description, drawings, background, abstract and summary, and how each of those sections supports the claims.

TUTOR Ben Fitzpatrick

11:30-11:45 Morning tea

11:45-12:30 TOPIC 2

How to properly construe a patent

The fundamental rules of construction, including purposive construction, followed by practical examples of how these principles are applied. The role of expert evidence in construction.

TUTOR Ben Fitzpatrick

12:30-13:30 Lunch

13:30-16:00 TOPIC 3

Patent claim drafting exercise

Participants draft claims to a patent specification in group exercises, assessed by the tutors. Each claim is checked to ensure it captures competing products, avoids unnecessary limitations, relates its elements to each other, overcomes the prior art and is industrially applicable. Particular focus on support and sufficiency, and the balance between broad claim scope and these internal requirements.

TUTORS Steven Fung, Ben Fitzpatrick, Greg Munt, Shigeru Inaba

16:00 Recap of day one and outline of day two

2

day 2 / wednesday

4 November 2026

09:30-16:00

09:30-11:00 TOPIC 3 CONTINUED
Patent claim drafting exercises
 Participants draft a set of claims in groups, which the tutors then review individually.

11:00-11:15 Tea break

11:15-12:30 TOPIC 3 CONTINUED
Drafting exercise
 Groups continue the practical exercise, and each group presents its answer to the class.

12:30-13:30 Lunch

13:30-16:00 TOPIC 4
The use of AI in drafting specifications
 Appropriate ways to use AI to assist in drafting specifications.
 TUTOR **Steven Fung**

16:00 Recap of day two and outline of day three

3

day 3 / thursday

5 November 2026

09:30-16:00

09:30-11:00 TOPIC 5
Drafting techniques for global prosecution strategy
 The specific requirements of particular jurisdictions, such as the EPO and the USPTO, and drafting strategies to address them.
 TUTORS **Greg Munt, Steven Fung, Shigeru Inaba**

11:00-11:15 Tea break

11:15-12:30 TOPIC 6
Dealing with complex office actions
 Responding to complex office actions, including amending claims and developing arguments, with practical exercises.
 TUTORS **Ben Fitzpatrick, Steven Fung, Greg Munt, Shigeru Inaba**

12:30-13:30 Lunch

13:30-16:00 TOPIC 7
How to advise on freedom to operate
 How to structure the advice, including its necessary qualifications and limitations. Infringement and invalidity considerations. A worked practical example of a freedom-to-operate advice is provided.
 TUTOR **Ben Fitzpatrick**

16:00 Recap of day three and outline of day four

4

day 4 / friday

6 November 2026

09:00-16:30

09:00-11:00

TOPIC 8

AI in office actions and prior art analysis

A continuation of Topic 4: handling an office action with AI, and analysing prior art documents with AI.

TUTOR Steven Fung

11:00-11:15

Morning tea

11:15-12:30

TOPIC 8 CONTINUED

AI in office actions and prior art analysis

TUTOR Steven Fung

12:30-13:30

Lunch

13:30-15:30

TRADEMARK CARAVAN

Non-Traditional Marks: From Practice to Challenges

A presentation and panel discussion. Onsite access is complimentary for course registrants, with no separate registration needed.

TUTOR Ben Fitzpatrick

15:30-16:30

Presentation of completion certificates

The programme may be subject to minor change.

YOUR TUTORS

four senior practitioners, three jurisdictions



Steven Fung

PRINCIPAL TUTOR / HONG KONG

A Hong Kong patent attorney with twenty years in practice, specialising in the drafting and prosecution of patent applications for universities, companies and government supported research organisations. His background is in computer engineering, and his work centres on AI, electronics, antennas and circuit design, control systems, and robotics and navigation. Working with Hong Kong universities and government funded research centres, he and his team have drafted, filed or obtained over 1,000 US patents and applications in the past decade.

Steven is a Patent Committee member of APAA Hong Kong and is well recognised in Hong Kong as a patent expert. He is a part-time and guest lecturer at the Chinese University of Hong Kong and City University of Hong Kong, teaching patent law, patent systems and patent drafting to engineering and science students, and lectures on intellectual property subjects at PolyU. He is active in the start-up community as a mentor on the HK Tech 300 programme and a vetting member of Cyberport's Entrepreneurship Committee Advisory Group.

He holds a Bachelor of Computer Engineering, a Bachelor of Laws, a Master of Commerce (Finance) and a Master of Industrial Property. He is a registered patent attorney in Australia and New Zealand, and a non-practising solicitor of the Supreme Court of New South Wales.



Ben Fitzpatrick

PRINCIPAL TUTOR / AUSTRALIA

A barrister at the Victorian Bar and a registered patent and trademark attorney, with twenty-five years specialising in patents and trademarks. He holds a first-class honours Bachelor of Science from Sydney University and an LLB from the University of New South Wales. He is a Senior Research Fellow at Melbourne University, where he has taught intellectual property for over ten years, including the Interpretation and Criticism of Patents course since 2015. Ben is married to Anne with three children and lives in Richmond, Melbourne, Australia.



Shigeru Inaba

PRINCIPAL TUTOR / JAPAN

A partner at Sayagata IP, a boutique intellectual property firm, and a Japanese patent attorney of almost 35 years in private practice. His work is principally patent prosecution in a broad range of technical fields, including mechanical engineering, architecture, construction, electrical engineering, electronics, and ICT. He taught university-level courses in patent law and intellectual property to engineering students for many years. He currently serves as Secretary General of APAA.



Greg Munt

SUPPORT TUTOR / AUSTRALIA

A registered Australian and New Zealand patent and trademarks attorney with a Bachelor of Engineering (Materials). He trained at a major Australian firm, spent three years in-house at a global mining and steelmaking company, then returned to private practice and was a partner for 36 years. Greg now contracts back to the firm.

Greg's practice has centred on working for a small group of Australian clients, most having global business operations. A major part of the work has been drafting patent specifications, filing the specifications with patent applications in Australia and elsewhere, and prosecuting the applications to patent grant. Another major part of the work for these clients has been conducting patent searches and providing freedom-to-operate opinions. Greg is a Past President of the Asian Patent Attorneys Association.

FEES AND REGISTRATION

registration fee

	THB	USD
APAA member	15,000	500
Non-member	18,000	600
Thailand Recognized Group member A subsidised rate, 25% below the APAA member fee	11,250	

The subsidised rate is open to all Thailand Recognized Group members, including new members, who can join through the course registration form. The fee covers course materials, lunch and refreshments each day, a certificate of completion, and complimentary onsite access to the Trademark Caravan. It does not include accommodation or travel.

how to register

- 1

Complete the online registration form.
- 2

We issue an invoice within three working days. Invoices are issued in THB or USD, at the registrant's choice.
- 3

Payment by bank transfer secures your seat.

Fees are non-refundable, including cancellation or no show. Bank charges, including any intermediary bank charges, are borne by the attendee.

Seats are limited to 50, shared by participants from Thailand and abroad. Registration closes on 19 October 2026.

practical information

VENUE

The Landmark Bangkok, 138 Sukhumvit Road, Khlong Toei, Bangkok 10110. The hotel is a short walk from Nana BTS Skytrain station.

ACCOMMODATION

Accommodation is not included in the fee. Information on room rates at The Landmark Bangkok is available on request.

LANGUAGE

The course is taught in English.

CONTACT

apaapsc2026@eml.nishimura.com

For questions about the course, registration or accommodation, contact the organising committee.